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Date: 10/4/18

**RESOLUTION NO. \_\_\_\_\_**

**ENTITLED: "A RESOLUTION TO ENHANCE THE GOVERNING BODY'S OVERSIGHT OF ITS PUBLIC INVESTMENT IN AND TO IMPROVE SERVICE AT THE CHEYENNE ANIMAL SHELTER."**

WHEREAS, on June 18, 2018, the City of Cheyenne, Wyoming (City), entered into an Agreement with the Cheyenne Animal Shelter/Services (CAS) to provide both animal control and animal shelter services; and

WHEREAS, the City provides \$505,000.00 to CAS to provide these services; and

WHEREAS, CAS is directed by a volunteer Board of Directors, which in turn hires a President/CEO to oversee and manage daily operations; and

WHEREAS, a recent highly-publicized incident involving an animal attack on a staff member, and a subsequent training exercise involving the same canine, led to both the canine's euthanasia and allegations of animal abuse against the CAS President/CEO; and

WHEREAS, the CAS Board investigated the matter, and held at least two lengthy executive sessions to discuss the matter, and finally decided to suspend the President/CEO; and

WHEREAS, the Governing Body of the City of Cheyenne has determined that better board governance, CAS staff training, and more prompt, consequential action by the CAS Board following the incident could have potentially prevented or more effectively resolved this situation.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, that the City Attorney be directed to work with counsel for CAS to propose an amendment to the City-CAS contract that adds the following three policy directives into the existing contract:

1. Annual governance training for the CAS Board;
2. An initial audit, and regularly scheduled audits thereafter, of the CAS policies and procedures by a nationally-recognized organization engaged in the business of animal protection, control, and shelter services; and
3. Develop a written crisis management plan to be incorporated into the contract between CAS and the City. The crisis management plan should include specific actions to be taken by the CAS Board in the event of a crisis. The plan should provide for the prompt notification of the crisis to the Governing Body through the City's appointed board member, and should allow for his or her participation. The plan will take into consideration the need for the Governing Body's involvement in resolving the crisis and account for the CAS Board's policies and procedures.

BE IT FURTHER RESOLVED, that the City Attorney and CAS counsel present to the Governing Body no later than October 22, 2018, a detailed plan in writing on how these items will be incorporated into said contract and other CAS or City related documents, and how the CAS intends to implement them expeditiously.

BE IT FURTHER RESOLVED, that failure of the CAS to comply with any terms set forth herein shall result in immediate notice from the City Attorney to the CAS that the City desires to terminate its contract with the CAS pursuant to Section 8, subpart K of the contract.

PRESENTED, READ, AND ADOPTED this \_\_\_\_\_ day of \_\_\_\_\_, 2018.

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MARIAN J. ORR, MAYOR

(S E A L)

ATTEST:

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CAROL INTLEKOFER, CITY CLERK